

**MINUTES**  
**Planning & Zoning Commission Meeting**  
**March 24, 2022 Virtual Online Meeting 6:00 PM**

**COMMISSIONERS**  
**PRESENT:**

Chair Eleni Constantine  
Vice Chair Kathy Green  
Commissioner Todd Brown  
Commissioner Charles Dalton  
Commissioner Angela Dye  
Alternate Lee Shea Betten

**STAFF PRESENT:**

Planning and Building Director Ron Quarles  
Senior Planner Phil Taylor  
Boards & Commissions Secretary Piper Miller  
Assistant Town Attorney Allie Slaten

**COUNCIL PRESENT:**

Adrienne Christy, Liaison

**MEETING INFORMATION**

This meeting was held virtually due to the COVID-19 Virus.

**I. CALL TO ORDER (6:00PM)**

The meeting was called to order at 6:01 PM.

**II. APPROVAL OF MINUTES**

- 1 P&Z Meeting Minutes dated February 24, 2022

*MOTION*

*To approve the meeting minutes of February 24, 2022 as presented.*

Moved by Kathy Green, seconded by Angela Dye.

PASSED unanimously.

**III. STAFF ANNOUNCEMENTS**

Director Quarles announced there will be a special meeting on March 31, 2022.

**IV. PUBLIC COMMENT ON NON-AGENDA ITEMS**

Public comment was received from Douglas Tooley.

**V. PUBLIC HEARING ITEMS**

- 1 **PROJECT TITLE:** Voodoo Lounge- Preliminary PUD and Preliminary Subdivision  
**SUMMARY:** Consideration of 1) a Preliminary Large-Scale PUD requesting two PUD variations pursuant to LUC Article 6, Division 3 including the following variations: 1) Create a lot over 11,750 square feet pursuant to LUC Section 3-212.C.2.a; and, 2) An increase in height from 35' to 36.3' for 18% of total lot area and a maximum height of 40' for approximately 25%

of total lot area; and 2) A Preliminary Large-Scale Subdivision to create two new lots pursuant to LUC Article 6, Division 4.

**LEGAL DESCRIPTION:** Lots 1,2,3 and 4, Block 10, Town of Telluride; and, the east 63.5 feet of Lots 6 and 8, and the north 12 feet of the west 54 feet of Lot 6, Town of Telluride, according to the Plat recorded in Plat Book 28, at Page 1, County of San Miguel, State of Colorado

**ADDRESS:** 235 East Pacific Avenue and 134 South Spruce Street

**ZONE DISTRICT:** Commercial (C)

**OWNER:** Town of Telluride

**APPLICANT:** Town of Telluride

**STAFF MEMBER:** Phil Taylor, Senior Planner

Planner Taylor shared a presentation of the application via the online meeting shared screen function (Exhibit V.1.a) and responded to questions and comments from the board.

CCY Architect Maura Trumble shared a presentation on the application via the online meeting shared screen function (Exhibit V.1.b) and responded to questions and comments from the board.

Public comment was received from Paul Russell, Judy Haas, Mike Wentworth, Joe Solomon, Steve Messinger, Amy Levek, Nancy and Mark Kerr, Peter Lundeen, Dave Valentine, Zelda Tenenbaum, Delton Poole, Wendy Jacobs Hampton, Sheldon Tenenbaum, Abhijeet Lele, Eric Cummings, Ed Moore, and Elyn Kronemeyer.

#### **MOTION 202**

*To approve the preliminary large-scale Planned Unit Development located at 235 East Pacific Avenue and 134 South Spruce Street with the findings noted in the staff report dated March 7, 2022, to allow the following PUD variations:*

- 1. Increase in lot size to a maximum of 17,400 square feet for the proposed Lot A, which shall contain the new affordable housing structure.*
- 2. Increase in height from 35' to 36.3' for approximately 18% of lot area and a maximum height of 40' for approximately 25% of total lot area.*

*And the following conditions:*

- 1. The following public benefit will be provided in exchange for the listed PUD variations:*
  - Provide approximately 25,000 square feet of deed restricted affordable housing in conformance with the Housing Guidelines, or dedicate at least 77% of the floor area as affordable housing in conformance with the Housing Guidelines.*

*This motion is based on evidence and testimony provided at a public hearing held on March 24, 2022, with notice of such hearing provided as required by the Telluride Land Use Code.*

Moved by Kathy Green, seconded by Todd Brown.

#### **VOTE**

A roll call vote was taken, and the motion PASSED unanimously.

#### **MOTION**

*To approve this large-scale subdivision located at 235 East Pacific Avenue and 134 South Spruce Street to replat four fully platted lots, a vacated alley and portions of two lots into two*

*new lots known as Lot A and Lot B. Lot A results in a 17,380.44 square foot lot and Lot B results in a 5,575.68 square foot lot with the findings and recommended conditions contained in the staff memo dated March 7, 2022.*

**Conditions:**

- 1) The large-scale subdivision application is dependent upon the concurrent PUD and HARC development plan approvals. Should the PUD or HARC development plan not be approved, the large-scale subdivision is rendered null and void.*
- 2) Upon final plat submittal the plat will conform with Section 6-407.C- Approvals and Certificates.*
- 3) The final plat will incorporate any redline comments provided by staff.*
- 4) The final large-scale subdivision plat must be recorded prior to building permit issuance.*
- 5) Approval of the Preliminary Large-Scale Subdivision shall constitute authorization for the Applicant to prepare and submit a Final Large Scale Subdivision application in accordance with the representations made by the applicant and conditions applied to the preliminary approval. The preliminary approval shall be effective for a maximum period of twelve (12) months unless, upon application, P&Z grants an extension of time. A preliminary large scale subdivision approval shall not constitute a site-specific development plan for purposes of vesting a property right.*

Moved by Kathy Green, seconded by Todd Brown.

**VOTE**

A roll call vote was taken, and the motion PASSED unanimously.

**2 PROJECT TITLE:** Transfer Warehouse- PUD Amendment

**SUMMARY:** Consideration of a PUD Amendment to amend the Transfer Warehouse PUD by modifying language regarding renovations of the Transfer Warehouse building as it pertains to the installation of a roof.

**LEGAL DESCRIPTION:** Lot 5R-R, Block 17, Town of Telluride, a Minor Subdivision of Lot 5R, Block 17, and a portion of the Pacific Avenue and Fir Street Rights of Way, Town of Telluride, San Miguel County, according to the Plat recorded on October 18, 2018 at Reception No. 456472.

**ADDRESS:** 201 South Fir Street

**ZONE DISTRICT:** Commercial (C)

**OWNER:** Telluride Council for the Arts and Humanities d/b/a Telluride Arts

**APPLICANT:** Justin Helmbrecht, Olson Kundig Architects

**STAFF MEMBER:** Ron Quarles, Planning and Building Director

*\*Clerk's note: A five-minute recess was taken at 8:09 PM. Commissioner Brown recused himself due to a conflict of interest at 8:17 PM.*

Director Quarles shared a presentation of the application via the online meeting shared screen function (Exhibit V.2.a) and responded to questions and comments from the board.

Applicants Doug Tueller, Kate Jones, and Penelope Gleason discussed the application. Architect Helmbrecht shared a presentation on the application via the online meeting shared screen function (Exhibit V.2.b) and responded to questions and comments from the board.

Public comment was received from Dave Valentine, Joe Solomon, Mark Lowes, Delton Poole, Andrew Peters, and Linne Halpern.

Input was received from Assistant Town Attorney Allie Slaten.

**MOTION 317**

*To approve the amendment to the Telluride Transfer Large-Scale Planned Unit Development replacing the term “installation of a roof” with “installation of a roof over a portion of the structure not dedicated to positive open space/courtyard subject to HARC final approval per Policy 12 under the Warehouse/Commercial (WC) Design Guidelines” with the findings set forth in the Staff Memo dated March 17, 2022 and with the following condition:*

- 1) Amendment reflecting the change shall also be made to the Development Agreement and Planned Unit Development Agreement and the Declaration of Covenants and Restrictions (Transfer Warehouse Parcel Covenant), both as amended to date, that shall be recorded with the County Clerk and Recorder as second amendments.*

*This motion is based on evidence and testimony provided at a public hearing held on March 24, 2022, with notice of such hearing provided as required by the Telluride Land Use Code.*

Moved by Kathy Green, seconded by Angela Dye.

**VOTE**

A roll call vote was taken, and the motion PASSED unanimously.

**VI. BOARD AND STAFF DISCUSSION**

Director Quarles reminded the board that the special meeting on March 31, 2022 will be in-person.

**VII. ADJOURN**

The meeting was adjourned by unanimous consent at 9:24 PM.

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Piper Miller, Boards &  
Commissions Secretary